

Smt. K.Gayathri, vs K.Venkatramana Sharma, on 18 October, 2022

THE HON'BLE SRI JUSTICE A.VENKATESHWARA REDDY
CIVIL REVISION PETITION NO.660 OF 2014
ORDER:

This Civil Revision Petition (for short 'CRP') is filed by the petitioner/wife under Section 115 of Civil Procedure Code (for short 'CPC') assailing the order dated 24.10.2013 in I.A.No.180 of 2008 in O.P.No.27 of 2005 on the file of the Senior Civil Judge, Nagarkurnool.

2. The Interlocutory Application in I.A.No.180 of 2008 is filed under Order 9, Rule 13 of CPC read with Section 5 of the Limitation Act to condone the delay of 152 days and to set aside the ex-parte order passed against the petitioner on 16.11.2007.

3. Heard learned counsel on both sides. Submissions made on either side have received due consideration of this Court.

4. The petitioner is the wife of respondent, who filed O.P.No.27 of 2005 against her husband for dissolution of marriage. Initially the said O.P.No.27 of 2005 was dismissed on 31.08.2006 and thereafter the respondent / AVR,J CRP_660_2014 : Page No.2 of 10 :

husband has filed I.A.No.275 of 2006 for restoration of petition and the same was allowed on 16.11.2007. After restoration of O.P.No.27 of 2005, the petitioner herein failed to pursue the matter and consequently the ex-parte decree was passed. At the time, when the petitioner has come to know about it, she was not at residence, she went to Hyderabad, she could not contact her counsel and when contacted her counsel, she has come to know about ex- parte decree dated 16.11.2007. Accordingly, she filed the present application.

5. The respondent / husband has filed a detailed counter denying the petition averments alleging that she has intentionally avoided to appear before the Court on 02.11.2007 and accordingly, on 16.11.2007 the Court has passed ex-parte decree against her and the delay is not properly explained and prayed for dismissal of the application.

6. The trial Court, having considered the rival contentions, dismissed the application with an observation that though the petitioner has requested to condone the AVR,J CRP_660_2014 : Page No.3 of 10 :

delay of 152 days, she has not put-forth any convincing reason for condoning the delay of 152 days in filing the application to set aside the ex-parte decree.

7. As per the averments of the supporting affidavit, filed by the petitioner, before the trial Court, it is stated by her that she being a poor lady, left to Hyderabad in search of her livelihood and she was

staying with her relatives, she hails from a remote village, she is having lot of personal problems, she could not contact her counsel when the notices for restoration of O.P. No.27 of 2005 were issued and served upon her and the circumstances were beyond her control. Apart from it, the respondent/husband has promised her to participate in the counselling process before the Judicial First Class Magistrate at Kollapur in the Maintenance Case and accordingly she was waiting for counselling but the respondent has obtained ex-parte decree behind her back.

8. The learned counsel for the petitioner strenuously contends that the petitioner is a rustic village lady, she was not in the village when the notice in AVR,J CRP_660_2014 : Page No.4 of 10 :

restoration application was served and that a liberal approach is required in such circumstances in condoning the delay and relied on the principles laid in the following decisions.

- (1) Manoharan Vs. Sivarajan¹.
- (2) Yellamma Vs. Kavali Paravathamma².
- (3) M/s.Mawar Steel Vs.M/s.Muddu and Mudu

Import and Export Private Limited³.

9. Per contra learned counsel appearing on behalf of respondent would submit that CRP is not maintainable and that the petitioner ought to have filed CMA and that the ex-parte decree was obtained long back on 16.11.2007 i.e. about fifteen years back. At this stage, decree cannot be set aside in a matrimonial dispute.

10. The undisputed facts of the case are that initially the original petition was dismissed for default on 31.08.2006 and before dismissal itself the petitioner/wife has filed her counter in O.P.No.27 of 2005. Her contention is that she has filed a Maintenance Case before the Judicial First Class Magistrate at Kollapur wherein her husband has promised to participate in the counselling Laws (SC) 2013 11 21 2022 Supreme (Telangana)¹⁰ 2022 Supreme Court (Telangana) 141 AVR,J CRP_660_2014 : Page No.5 of 10 :

process and that she was waiting for that opportunity. In the meanwhile, she left to Hyderabad in search of livelihood, lived with her relatives, she was not in contact with her counsel and accordingly she could not respond to the restoration application, failed to appear on 02.11.2007 and accordingly, on 16.11.2007 an ex-parte decree was passed.

11. While dealing with the applications filed under Order-IX, Rule-13 of CPC, the Hon'ble Supreme Court of India in Parimal v. Veena @ Bharti⁴, held thus:

"Approach of the court while dealing with such an application under Order IX, Rule 13 C.P.C. would be liberal and elastic rather than narrow and pedantic. However, in case the matter does not fall within the four corners of Order IX, Rule 13 CPC, the Court has no jurisdiction to set aside ex-parte decree. The manner in which the

language of the second proviso to Order IX, Rule 13 C.P.C. has been couched by the legislature makes it obligatory on the appellate Court not to interfere with an ex-parte decree unless it meets the statutory requirement. It was not permissible for the High Court to take into consideration the 4 (2011) 3 SCC 545 AVR,J CRP_660_2014 : Page No.6 of 10 :

conduct of the appellant subsequent to passing of the ex-parte decree."

12. It was a case in which the spouse who obtained the ex-parte decree had remarried. The Hon'ble Supreme Court declined to take into account the remarriage of the spouse as a relevant factor in deciding the merits of an application filed for setting aside the ex parte decree of divorce. Accordingly, while seeking guidance from the above, I am of the firm view that mere re-marriage of the petitioner-husband who obtained ex parte decree of divorce will not render the application to set aside the ex parte decree filed by the wife-opposite spouse infructuous. Re-marriage of the spouse is not a relevant factor to be taken into account in deciding the merits of the application filed for setting aside the ex parte decree of divorce. The application under Order-IX, Rule-13 of CPC has to be considered on its own merits within the four corners of that provision.

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13. In *Miryala Kavitha @ Yadamma Vs. Miryala Krishnaiah*⁵ Learned Single Judge of this Court has clearly held that the provisions of Section 5 of the Limitation Act would apply to the proceedings under Hindu Marriage Act and an appeal is also maintainable if it is filed beyond the period of thirty days. The Hon'ble Supreme Court in *Tejinder Kaur Vs. Gurmit Singh*⁶ and in *Smt. Lata Kamat Vs. Vilas*⁷ held that under Section 28(4) of Hindu Marriage Act the appellant is entitled for exclusion of time taken for obtaining certified copies of the decree. In *Smt. Lata Kamat Vs. Vilas* (7th supra) the Hon'ble Supreme Court has also dealt with interpretation of suit or other proceedings under Section 29(3) of Limitation Act and held that the impact of Sub-Section (3) is concerned, it will be that the provisions of the Limitation Act will not apply so far as a suit or an original proceeding under the Act is concerned but clause (3) will not govern an appeal. Hon'ble Supreme Court in *M/S Sahara India and others Vs. M.C. Aggarwal* Huf⁸ held that where no 2004 (3) ALD 690 6 1988 (2) SCC 90 7 1989 (2) SCC 613 8 2007 (11) SCC 800 AVR,J CRP_660_2014 : Page No.8 of 10 :

opportunity of hearing has been given and an ex-parte order has been passed the Court should not lose sight against the fact that the prejudice will be caused to the other side and consequently restore the case.

14. In the case on hand the trial Court has clearly recorded that on 02.11.2007 the petitioner/wife could not appear and on 16.11.2007 an ex-parte decree was passed and whereas the contention of the petitioner is that she was not in the village, she was at Hyderabad with her relatives, she is a rustic village lady, without having any male support and thereafter when she consulted her counsel, she was informed about ex-parte decree dated 16.11.2007. At this stage it is apposite to mention that on a query posed by this Court learned counsel for the petitioner and respondent have

submitted that till date the respondent / husband has not re-married.

15. There cannot be any straitjacket formula of universal application to condone the delay. "Sufficient Cause" under Section 5 of Limitation Act is only a question of fact and the Court has to exercise its judicious AVR,J CRP_660_2014 : Page No.9 of 10 :

discretion to meet the ends of justice. Though under Section 15 of Hindu Marriage Act, a divorced person is entitled to marry again after expiry of appeal time, that by itself does not make the application filed either under Section 5 of Limitation Act or under Order-IX, Rule-13 CPC as infructuous.

16. In the present case, the petitioner / wife is able to explain the delay of 152 days stating that she went to Hyderabad and she was living with her relatives in search of her livelihood, she was not aware of the proceedings in restoration application, she was waiting for counseling in pending Maintenance Case before the Judicial First Class Magistrate at Kollapur and in the meanwhile her husband obtained ex-parte decree dated 16.11.2007. Therefore, in such facts and circumstances of the case, while relying on the principles laid in the above decisions, I hold that the order impugned warrants interference by this Court, a jurisdictional error is crept in dismissing the application filed to condone the delay of 152 days, consequently, the order impugned is set aside and the delay of 152 days is condoned.

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17. In the result, this Civil Revision Petition is allowed, order impugned dated 24.10.2013 in I.A.No.180 of 2008 in O.P.No.27 of 2005 on the file of the Senior Civil Judge, Nagarkurnool is set aside and the delay of 152 days in filing appeal is condoned and consequently, the ex-parte order dated 16.11.2007 in O.P.No.27 of 2005 is hereby set aside. In the circumstances of the case, there shall be no order as to the costs. Miscellaneous applications, if any pending, shall stands closed.

A.VENKATESWHARA REDDY, J 18-10-2022 Abb